Workspace 'Running Notes' in 'Environmental Law '

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to be remembered may be reduced.

DATE — 7/9/26
i) Put forth question to the class — "For the development of a project, can the government protect the rights of all elements simultaneously? — The answer is Yes."
ii) Stated that multiple laws are present so as to achieve the above question of ii).
iii) Stated that, once judicial questions are decided, the jurisprudence of environmental laws are established.
iv) Mentioned the names of Indian Forest Act, 1927 of the British era or colonial era; then the Post Independence era; then the Conservation Era; then the Rights Based era (Forest Rights Act 2006); then the Biodiversity Era (Act of 2002).
v) Stated that which element will get the protection, will be decided on a case by case basis — on whoever requires the protection the most. Mentioned about EIA in this context.
vi) Showed TABLE — Divided into 4 classes — 1) Forest 2) Wildlife 3) Conservation 4) Tribals — Under 1) — a) Forest Governance and b) Forest Conservation are sub classes. Under 2) — c) Wildlife Protection is the sub class. Under 3) — d) Biodiversity Conservation is the sub class. Under 4) — e) Community Traditional Rights is the sub class. Under a) comes the Indian Forest Act, 1927. Under b) comes the Forest Conservation Act, 1980. Under c) comes the Wildlife Protection Act, 1972. Under d) comes the Biodiversity Act, 2002. Under e) comes the Forest Rights Act, 2006.
vii) Putting questions of violation or questions to be decided — and asking under which Class and sub classes would it fall under and which law would be applicable?
viii) Putting hypothetical questions — and asking us to take a side and argue using environmental legality.

DATE — 14/9/26
i) Began by stating that Professor is going to be discussing Past year's Mid semester question paper, her grading system, and how many words she needs in the answers (one paragraph begin around 50 to 60 words).
ii) Sent the question paper which Professor would be discussing, to classmate Sripurna. (I will upload.)
iii) For Section C it could either be one question of 50 marks, or 2 questions of 25 marks each.
iv) Stated that Section B is analytical. Also stated that for "Critically analyse", not just negative points, but we have to provide our "critics".
v) In Section C, we provide you with an extract, list the facts, and then write accordingly as per the question, also to mention judgements but landmark cases since the question is of 25 or 50 marks, just citing the case and drawing the analogy from such to the answer will guarantee at least 5 marks.
vi) Example question, and writing an example answer so that Professor can check and tell us what she wants, so that we can get full 5 marks — Elucidate upon the rule of absolute liability in contrast to strict liability — The answer I wrote — you know which you gave me. The general comments Professor gave, are here — a) Keywords are Rylands v. Fletcher, it's year, MC Mehta v. UoI, it's year; it's exceptions, plaintiff the wrongdoer, no fault liability, Act of God; in Strict liability "escape of a dangerous thing"; in Absolute liability "dangerous and hazardous activity". She does not look at length of the answer, but the Order in which we have arranged our keywords in the answer. She's also saying that handwriting should be legible, so as to not give her difficulty to check the answer (the handwriting remark should apply to all chats in this project, as my handwriting is quite bad). Specific comments to my answer — a) She told me not to change anything, told me that's exactly what she's looking for. b) Although even after I explained the reference to Strict and since it's the postulate it should be established in the beginning, however, she said that she was expecting the absolute liability to be at the beginning, however, again my answer's fine. Now, this might happen in the exam checking (since she's very impatient) that she does not come to this subtlety and still expects such to come first, so tune it accordingly. Additionally, although she told us to use A.I. since she wanted to see how better we can still write the answer, she thought that I wrote the answer on my own, only after compiling all the data; which she appreciated. T
vii) Stated that Section A's questions are factual oriented, mostly. However, that's not the case in Question 3 of the question paper, since that answer won't just contain the factual data.
viii) Stated to remember the landmark judgements that are relevant for Question 5 of the question paper.
ix) Stated that the year's of the Conventions and the Landmark judgements must be remembered, as she is marking on those as well.
x) Stated that Question 7's excerpts is related to a particular judgement, therefore had we known the judgement, we would have been able to know how to correlate the correct answer. Therefore such types of questions which are based on judgements, may come.
xi) Stated to Email on 16/9/26, my answer on a 25 mark question so that Professor can personally comment upon Professor's desired format, from my answer.

DATE — 21/9/26
i) Began with Unit VI.
ii) Told us to open Forest Rights Act 2006.
iii) Told us to read the Preamble, so that we can write generic questions on this Act.
iv) Stated the important parts that we must remember, since they might come as objective questions of 2 marks — "The overview and the objective of this Act, read the preamble of this Act; definitions Section 2(a), (b), (d); Section 3 is to glanced through; Section 5(d) is important. Specially for your 2 marker, Section 7 and Section 8 are important, since these are part of the offences and penalties which we should know about since we are studying law; also, know the full name of the act, because sometimes, in short, it is known as Forest Rights Act, but it has a longer name as well. Section 10 is also important. I repeat, these are all the enumerated sections which you must remember for the exam."

DATE — 28/9/26
i) Began by stating — expect heavy questions on Unit 4 for the Mid Sem exam.
ii) Stated that Unit 5 and 6 are important for the End Sem exam.
iii) Began with the Forest Conversation Act, 1980.
iv) Stated for above iii) — a) Preamble is important. b) Section 1 and Section 2 and Section 3. (1, 2, 3, includes the 1A, 2A, 3A, and further attached letters.)
v) Stated that heavy application format questions may come, engaging with the above mentioned Act.
vi) Stated the new name for this Act — Van (Sunrakshakevam Samvardhan) Adhiniyam, 1980 (Brought by the amendment on 4th August, 2023).
vii) Stated that the keywords in the Preamble, needs to be mentioned.
viii) Put question to the class — "What is Carbon Sink ?"
ix) Stated that, heavy questions may come on the above mentioned Act.
x) Stated that — T.N. Godavaram v. Union of India — this is mandatory for any question related to Forest.

DATE — 12/10/26
i) Began by stating that Professor is going to share with us, model answers, for the Mid Sem question paper, so that we know the answers that would have received the maximum marks.
ii) Stated that, with reference to class of 28/9/26, — T.N. Godavaram v. Union of India — this case's highlights need to be remembered.
iii) Stated that for the Video assignment — what must be there are laws directly focused on the environment; taking into consideration real situations which are currently in effect, and such would be needing to be addressed. Example — maybe some place has certain elements that are violating a particular law, we suggest what can be done; additionally, if we can focus on the loopholes that are there in such laws and bring them out, Professor would appreciate it.
iv) Stated that — 2 to 3 marks in a 50 mark question, is given for — if the gist of the question itself is written at the beginning of the answer, i.e. to say, the facts are put in order; and then the actual answer is begun.
v) Stated — SDGs that were given in the mid sem question paper, are important to know. Know at least what the SDGs are all about.

DATE — 26/10/26
i) Began with Water Act, 1974.
ii) Stated that Professor is going to state the only Sections from within which, questions may come.
iii) Stated that the topics dealing with Role of Judiciary are very important.
iv) Stated Objectives of Water Act, 1974 — a) To prevent and control water pollution. b) To maintain the wholesomeness of water. c) To establish CPCB (Central Pollution

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iv) Stated Objectives of Water Act, 1974 — a) To prevent and control water pollution. b) To maintain the wholesomeness of water. c) To establish CPCB (Central Pollution Control Board) and SPCB (State Pollution Control Board) d) To prescribe and enforce standards for water quality and effluent discharge. e) To regulate the discharge of sewage, and trade effluents into streams, wells, sewers, and on land. f) To provide inspection, sampling, monitoring, enforcement powers to regulatory authorities. g) To enforce legal consequences for violations of the Act.
v) Stated that 21, 41A, 51(a)(g), 126 (and other water related Articles of the Constitution) are important.
vi) Stated Framework of the Act — a) Legislative Framework — Under a) Water (Prevention and Control of Pollution) Act, 1974 — i) CPCB — Under i) National Co-ordination, Technical guidance, Research and Standards related functions. ii) SPCB — Under ii) State level regulation, Consent administration, Inspections and Enforcement.
Between i) and ii) — Regulated persons and establishment — Compliance and Enforcement.
Under Between i) and ii) — Consent Requirements, Inspection, Directions, Legal Proceedings, Penalties.
vii) Stated about ESG (Environmental Social Governance) — BRSR (Business Responsibility and Sustainability Reporting) — SDG 2030.
viii) Stated to be very important and these can be mentioned in not only this, but other relevant topics — SDG 6 (Clean Water and Sanitation), SDG 7 (Affordable and Clean Energy), SDG 11 (Sustainable Cities and Communities), SDG 12 (Responsible Consumption and Production), SDG 13 (Climate Action), SDG 14 (Life below Water), SDG 15 (Life on Land).
ix) Stated — Section 2 of the Water Act — Pollution, Stream, Trade Effluent, Sewage Effluent is important.
x) Stated — Section 16 and Section 17 (Regulatory mechanisms under the Water Act).
xi) Stated — Section 24 to Section 27 (Consent Mechanism) — "Just know what Consent Mechanism is, and that the relevant sections are these, need not go through the sections in detail).
xii) Stated — Offences and Penalties — Sections 41, 41A, 42, 43, 44, 45A, 45B, 45C, 48, 49.
xiii) Stated — Role of judiciary — Cases — Vellore Citizens Welfare Forum v. Union of India, Indian Council for Enviro-Legal Action v. Union of India, M.C. Mehta v. Union of India (Ganga Pollution Case), Subhash Kumar v. Union of India.
xiv) Stated — Limitations and the Implementation challenges of the Water Act, 1974.
xv) Stated — Critical Appraisal of the Water Act, 1974 — this question may come in the exam.

DATE — 2/11/26
i) Began with showing the marked answer sheets (I received 71 marks out of 100 marks) (Took photos, will upload).
ii) Q2 — why 2 (I have literally written the exact statutory phrase) ?; Q5 — why 2 marks not given (I have gone beyond the model answers, with Ramlal case under Public nuisance) (I have also put Section 271, 279, 280 which are not even in the model answers)?; Q6 — Why 2 marks not given? Q7 — Why 23 marks not given?
iii) Professor's reply — For Q2 — write the amendment and it's year (amendment 1 mark and it's year 1 mark, here). Also stated — for getting even more marks — flowcharts, tables, Sanskrit slokas which are extremely relevant should be put in at least some answers.

DATE — 2/11/26
i) Began with Air (Prevention and Control of Pollution) Act, 1981.
ii) Stated objectives of the Act — a) To prevent, control Air pollution. b) To establish CPCB, SPCB. c) To prescribe standards for emissions from industrial plants and other regulated sources. d) To regulate industrial activities in designated air pollution control areas. e) To provide inspection, monitoring, and sampling powers to pollution control authorities. f) To prescribe legal consequences for violations of statutory requirements. g) To protect human health, vegetation, animals, and property from the harmful effects of air pollution.
iii) Stated — This Act was enacted by the Parliament in the context of implementing India's international environmental commitments, particularly under Article 253 of the Indian Constitution.
iv) Stated 5 components of the Act — a) Establishment of Pollution Control Boards. b) Air pollution control areas. c) Consent requirements for Industrial plants. d) Monitoring, Inspection, and Emissions standards. e) Enforcement through directions, penalties, and judicial remedies.
v) Stated — Section 2 — 2(a), 2(b), 2(k).
vi) Stated — Control Boards — Section 16, Section 17.
vii) Stated — Regulatory mechanisms under the Air Act, 1981 — Section 19 — Air pollution control areas (Refer to this section, just for an overview).
viii) Stated — Section 21, Section 22.
ix) Stated — Inspection, Sampling, and Monitoring — Section 23 to Section 30 — gives us an overview regarding the provisions related to furnishing of information, entry and inspection, power to obtain information, power to take samples, generation of reports and analysis, and the access to State Air Laboratories and Analysts.
x) Stated — Liabilities of Companies — Section 40.
xi) Stated — Offences by Government Departments — Section 41.
xii) Stated — Role of the judiciary in prevention of air pollution — Subhash Kumar v. State of Bihar; Vellore Citizens' Welfare Forum v. Union of India. Stated that cases specific to Air Act topic — Taj Trapezium Case (M.C. Mehta v. Union of India (1997)); Vehicular Pollution case (M.C. Mehta v. Union of India (1998)) — Delhi Public Transport, shift to CNG, emphasised the need to take measures to control vehicular emissions; Oleum Gas Leak Case from Shreeram Food Fertilisers Industries — Developed the principle of absolute liability.